

MEMORANDUM OF UNDERSTANDING

Reference: 2020-2021 Changes to Working Conditions, Time Off, and Administrative Leave

The Ball-Chatham Education Association, IEA/NEA ("BCEA") and the Ball-Chatham School District #5 Board of Education agree to the terms for the work location, work week, time off, livestreaming, and administrative leave days beyond FFCRA.

Background: Due to changes that resulted from COVID-19 related constraints, the district needed to adjust time off, add livestreaming for GHS, clarify the work week schedule, and address potential time off beyond FFCRA.

Purpose: This MOU will outline the work location for all certified staff (aside from any with HR approved accommodations), work week schedule, how time taken off will be applied, administrative leave days beyond FFCRA, and livestreaming for remote students. This agreement is non-precedent setting.

1. Administrative Leave Beyond FFCRA. Employees who exhaust available FFCRA qualifying leave (80 hours of leave) pursuant to reasons of quarantine and personal illness (but excluding employees caring for children pursuant to FFCRA reason 5 and caring for others pursuant to reason 4) will be entitled to a single additional grant of up to 10 total additional days paid administrative leave as needed if an additional quarantine pursuant is required because the affected teacher teaches in-person and a child in the teacher's classroom is diagnosed or tests positive for COVID-19 within the prior 10 calendar days and the teacher becomes seriously ill with COVID-19, requiring hospitalization for the illness, and thus unable to teach remotely during such leave. Administrative leave days will not be credited to any employee except if used, will be waived and lost if unused, and are not "benefits" to be credited to any employee's leave entitlement. There shall be no more than 10 additional total days granted to any individual employee pursuant to this MOU.

2. Instruction. Glenwood High School Educators will be expected and held accountable to prepare and deliver instructional materials, lessons, and appropriate plans for in-person instruction and taking into account students who are participating synchronously in remote instruction for each day on the BCSD calendar during the 2020-2021 school year. In the event schools are ordered to provide remote-only instruction, Teachers will be required to provide 5 clock-hours of student instruction and work for each day of such remote instruction.

3. Work Week. The work week schedule prior to November 9th was 20 minutes short of the 2360-minute work week as outlined in the 2018-2021 contract. The new schedule will rectify that discrepancy. Effective Monday, November 9th, the work week schedule will be as follows:

- Monday-Thursday 7:15 to 4:05. Lunch/Prep will be from 11:00 to 12:15.
- Friday 7:30 to 11:30.

Monday	Tuesday	Wednesday	Thursday	Friday
7:15 - 11:15	7:15 - 11:15	7:15 - 11:15	7:15 - 11:15	7:30 - 11:30
11:15 - 12:15	11:15 - 12:15	11:15 - 12:15	11:15 - 12:15	
12:15 - 4:05	12:15 - 4:05	12:15 - 4:05	12:15 - 4:05	
TOTAL TIME: 1.125 days	TOTAL TIME: 1.125 days	TOTAL TIME: 1.125 days	TOTAL TIME: 1.125 days	TOTAL TIME: 0.5 days

Each blue square in the chart above represents a half day. The final 0.5 days of the week are comprised in the chart above of all four orange squares together (4 hours).

Effective Monday, November 9th, time off will be as follows:

- Monday-Thursday
 - Full day is 7:15 to 4:05pm and will count as 1.125 days.
 - Half day is 7:15 to 11:15 or 12:15 to 4:05 and will count as 0.5 day.
- Friday 7:30 to 11:30 will count as 0.5 day.

This time is reflective of a 5-day work week, with time Monday-Thursday being prorated. This change will apply for all requested time off going forward, regardless of when the request was made. Staff may change upcoming requests for time off in Aesop as needed.

Time off prior to Monday, November 9th:

A system error involving the interplay between Aesop and Skyward has resulted in some employees who took a half-day off on a Friday prior to November 9th, being charged for a full day. The Human Resource department is aware of and working on the system error. The process to correct the error may take up to two pay periods to remedy.

- Those employees who had requested a half day off, but were docked for a full day will only be charged for a half day.
- Any certified employees who took a full day off prior to November 9th (Monday- Thursday) will not be retroactively charged 1.125 days.

4. Livestreaming. During synchronous instruction at Glenwood High School, Educators shall monitor the synchronous audio and video transmission, and check to assure connectivity at least once every hour. Educators may pause synchronous transmission to address disciplinary issues.

5. Notice. BCSD agrees to notify parents that transmission is not permitted to be recorded or distributed without express written agreement of BCSD. BCSD shall not use video or audio transmission videos to accomplish formal observation or summative evaluation without agreement from the BCEA member to be viewed. Administrators entering a "room" or "meeting" to view a live stream shall announce themselves upon entry. Nothing in this MOU shall be read to restrict BCSD from investigating or issuing appropriate discipline for matters of employee misconduct.

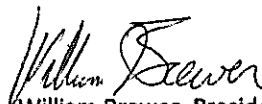
6. Work Location. Educators will be expected to be at school during contractual hours unless prohibited by subsequent order of the Governor of Illinois, Illinois Department of Public Health, Sangamon County Department of Public Health, or the Superintendent of BCSD.

7. Alterations. If, during the life of this agreement, ISBE alters the rules for instruction during the 2020-2021 school year, or otherwise re-defines or clarifies the rules for Blended, Hybrid, on-site, or Remote Learning Days, both parties agree to revisit this agreement to determine if changes are necessary.

8. Superintendent's Authority. Consistent with his obligations for regular assessment and revision of BCSD Remote Learning Day Plan set forth in 23 Ill. Adm. Code 5.10(2), the Superintendent may change or limit these requirements to reduce the implementation requirements specified above. Should additional performance or hours be required, the parties will meet to negotiate the terms of such agreement.

Duration: The Association and the Board acknowledge that this Memorandum of Understanding shall be without precedent and shall not serve to otherwise amend any term or condition of the Collective Bargaining Agreement between the Board and the BCEA. This agreement shall be immediately effective upon its execution. The parties agree and understand that this MOU shall fully extinguish and cease to exist, having no effect upon status quo or past practice after the conclusion of the 2020-2021 school year, and shall extinguish on that date.

This agreement is made by the 20th day of November 2020 by:


William Brewer, President
Board of Education, Ball-Chatham CUSD #5

Date: 11-25-20


Kari Kath, President
Ball- Chatham Education Association, IEA/NEA (BCEA)

Date: 11-24-20